JUDGMENT SHEET

IN THE LAHORE HIGH COURT LAHORE JUDICIAL DEPARTMENT

W.P No.33423 of 2013

Faisal Farooq & 3 others

Vs

S.H.O & another

JUDGMENT

Date of Hearing.	26.05.2016
PETITIONERS BY:	M/s Shahid Ikram Siddiqui, Muhammad Imran Malik, Khawaja Saeed ul Zafar, Munawar-us-Salam, Shoaib Rashid, Ahmad Owais, Liaqat Ali Cheema, Muhammad Farooq Bedar, Khawaja Adnan Farooq, Muhammad Yousaf Chaudhry-I, Mian Maqsood Ahmad, Mian Asghar Ali, Rao Athar Ikhlaq, Raja Asif Ali Khan, Asif Afzal Bhatti, Advocate.
RESPONDENTS BY:	M/s Amir Wakeel Butt, Barrister Saad Ehsan Warraich, Muhammad Akram Pasha, Abdul Hameed Chauhan, Rana Muhammad Asif Iqbal, for respondent-Bank. Mr. Imran Aziz, D.A.G. Mr. Tahir Mehmood Khokhar, Standing Counsel.

Shahid Karim, J:- This judgment shall deal with two categories of cases. In the first category, we have been informed, fall petitions where matters are pending with the Federal Investigating Agency (**FIA**) which has yet to determine the course of action to be taken with respect to the complaints filed with FIA. The second category relates to the matters where first information reports (FIRs) have been registered under the various provisions of Pakistan Penal Code (**PPC**). In both these categories, the petitioners have prayed for setting aside of the proceedings and consequently the quashment thereof. This judgment shall decide the connected petitions listed in Appendix 'A' with this petition.

2. It is not necessary to lay out the facts in each case as we intend to focus our attention to the broad and vexed question of law which is a common thread in these petitions. The question of law which we have been invited to determine is whether there is a complete bar and prohibition on the initiation of any action or setting into motion proceedings before either the FIA or by registration of cases under the PPC in view of the provisions of the Financial Institutions (Recovery of Finances) Ordinance, 2001 (**Ordinance, 2001**). The precise submission of the learned counsel for the petitioners is that in view of the exclusionary provisions in the Ordinance, 2001 and the exclusivity of the Banking Court in taking cognizance of the offences, no other authority or court can take cognizance of the matters which are squarely covered by the provisions

of the Ordinance, 2001 and any offences which are mentioned therein. In a nub, the learned counsel for the petitioners alleged that normal procedures stand ousted and the only course open is to file a complaint under the provisions of the Ordinance, 2001 to be tried by the Banking Court.

3. The entire reliance of the learned counsel for the petitioners is on the provisions of section 7 of the Ordinance, 2001 and in particular the tenor and sweep of subsection (4). For facility, section 7 is reproduced as under: -

> *7. Powers of Banking Courts.- (1) Subject to the provisions of this Ordinance, a Banking Court shall:*
>
> *(a) in the exercise of its civil jurisdiction have all the powers vested in a civil Court under the Code of Civil Procedure, 1908 (Act V of 1908);*
>
> *(b) in the exercise of its criminal jurisdiction, try offences punishable under this Ordinance and shall, for this purpose have the same powers as are vested in a Court of Sessions under the Code of Criminal Procedure, 1898 (Act V of 1898):*
>
> *Provided that a Banking Court shall not take cognizance of any offence punishable under this Ordinance except upon a complaint in writing made by a person authorized in this behalf by the financial institution in respect of which the offence was committed.*
>
> *(2) A Banking Court shall in all matters with respect to which the procedure has not been provided for in this Ordinance, follow the*

procedure laid down in the Code of Civil Procedure, 1908 (Act V of 1908), and the Code of Criminal Procedure, 1898 (Act V of 1898).

(3) All proceedings before a Banking Court shall be deemed to be judicial proceedings within the meaning or sections 193 and 228 of the Pakistan Penal Code (Act XLV of 1860), and a Banking Court shall be deemed to be a Court for purposes of the Code of Criminal Procedure, 1898 (Act V of 1898).

(4) Subject to sub-section (5), no Court other than a Banking Court shall have or exercise any jurisdiction with respect to any matter to which the jurisdiction of a Banking Court extends under this Ordinance, including a decision as to the existence or otherwise of a finance and the execution of a decree passed by a Banking Court.

(5) Nothing in sub-section (4) shall be deemed to affect

(a) the right of a financial institution to seek any remedy before any Court or otherwise that may be available to it under the law by which the financial institution may have been established; or
(b) the powers of the financial institution, or jurisdiction of any Court such as is referred to in clause (a); or require the transfer to a Banking Court of any proceedings pending before any financial institution or such Court immediately before the coming into force of this Ordinance.

(6) All proceedings pending in any Banking Court constituted under the Banking Companies (Recovery of Loans, Advances, Credits or Finances) Act, 1997 (XV of 1997), including suits for recovery of "loans" as defined under that Act shall stand transferred to, or be deemed to be transferred to, and heard and disposed of by, the Banking Court having jurisdiction under this Ordinance. On transfer of proceedings under this sub-section, the parties shall appear before the Banking Court concerned on the date previously fixed.

(7) In respect of proceedings transferred to a Banking Court under subsection (6), the Banking

> *Court shall proceed from the stage which the proceedings had reached immediately prior to the transfer and shall not be bound to recall and re-hear any witness and may act on the evidence already recorded or produced before the Court from which the proceedings were transferred.*

4. A dissection of section 7 would ineluctably bring forth that in the exercise of its criminal jurisdiction, a Banking Court shall try offences punishable under the Ordinance, 2001 and shall, for the purpose, have the same powers as are vested in a court of Sessions under the Code of Criminal Procedure, 1898 (**Cr.P.C**). Thus, what will be noticed in the first instance, is that the Banking Court will only try offences punishable "under this Ordinance". It follows indubitably that the Banking Court does not have power to try offences under any other law. The significance and import of this shall be adverted to in the latter part of this judgment. By the proviso of clause (b) of subsection (1) to section 7, a Banking Court shall not take cognizance of any offence punishable under the Ordinance, 2001 except upon a complaint in writing made by a person authorized in this behalf by the financial institution in respect of which the offence was committed. It follows, therefore, that the complaint

can only be filed by a financial institution and that too by a person authorized by it. The necessary corollary is that no other person is authorized to file a complaint before the Banking Court in respect of any offence punishable under the Ordinance, 2001. This makes the exercise of criminal jurisdiction by the Banking Court as a limited jurisdiction and for the benefit of financial institutions only. It also follows from this that any person who is not a financial institution cannot bring a complaint to the Banking Court and, therefore, does not have the *locus standi* to file such a complaint. As a prefatory therefore it may be mentioned that in case the submission of the learned counsel for the petitioners is accepted, then any person apart from the financial institution will be left high and dry and without a remedy in respect of any criminal offence for which he seeks criminal prosecution.

5. Subsection (4) of section 7 is of a crucial nature and is at the heart of the controversy involved in these petitions. It has also the fulcrum around which the arguments of the learned counsel for the petitioners revolve. According to subsection (4), no

Court other than a Banking Court shall have or exercise any jurisdiction with respect to any matter to which the jurisdiction of a Banking Court extends under the Ordinance, 2001. This includes the jurisdiction with respect to the exercise of criminal matters as well. Upon a reading of subsection (4), it becomes clear that subsection (4) confers exclusive jurisdiction on a Banking Court with respect to matters under the Ordinance, 2001 and perhaps there is no cavil with this proposition. However, subsection (4) does not place a prohibition on the setting into motion of criminal prosecution under the general law and of registration of cases under the PPC as that would be putting a clog on the right of a person to have a case registered if an offence is made out under any other law. This distinction has to be kept in mind while putting a construction on the exclusive jurisdiction clause contained in subsection (4). While there may not be a dispute regarding the proposition that with regard to the offences mentioned in the Ordinance, 2001, Banking Court will have exclusive jurisdiction yet it may be difficult to accept as a general proposition that subsection (4) by necessary intendment bars the taking of cognizance or registration of cases under the general law. It is important to bear in mind that the provisions of subsection (4) do not convey such a meaning. Nor can the intention of the legislature be culled out to convey the interpretation which is canvassed by the learned counsel for the petitioners. The provisions of subsection (4) can only be taken to mean what is enacted and nothing beyond that. Subsection (4) does not specifically says that proceedings under any other law are barred. It merely confers jurisdiction on the Banking Court with regard to offences mentioned in the Ordinance, 2001.

6. Subsection (5) of section 7 of the Ordinance, 2001 is a slight deviation from the exclusive jurisdiction conferred on the Banking Court under the Ordinance, 2001. It preserves and keeps intact the right of financial institution to seek any remedy before any Court that may be available to it under the law by which that financial institution may have been established.

7. The offences under the Ordinance, 2001 are encapsulated in section 20 of the Ordinance, 2001. sub-section (1) of Section 20 reads as under:

> *20. Provisions relating to certain offences. –*
>
> *(1) Whoever (a) dishonestly commits a breach of the terms of a letter of hypothecation, trust receipt or any other instrument or document executed by him whereby possession of the assets or properties offered as security for the re-payment of finance or fulfillment of any obligation are not with the financial institution but are retained by or entrusted to him for the purposes of dealing with the same in the ordinary course of business subject to the terms of the letter of hypothecation or trust receipt or other instrument or document or for the purpose of effecting their sale and depositing the sale proceeds with the financial institution; or*
>
> *(b) makes fraudulent mis-representation or commits a breach of an obligation or representation made to a financial institution on the basis of which the financial institution has granted a finance; or*
>
> *(c) subsequent to the creation of a mortgage in favour of a financial institution, dishonestly alienates or parts with the possession of the mortgaged property whether by creation of a lease or otherwise contrary to the terms thereof, without the written permission of the financial institution; or*
>
> *(d) subsequent to the passing of a decree under section 10 or 11, sells, transfers or otherwise alienates, or parts with possession of his assets or properties acquired after the grant of finance by the financial institution, including assets or properties acquired benami in the name of an ostensible owner shall, without prejudice to any other action which may be taken against him under this Ordinance or any other law for the time being in force, be punishable with imprisonment of either description for a term*

which may extend to three years and shall also be liable to a fine which may extend to the value of the property or security as decreed or the market value whichever is higher and shall be ordered by the Banking Court trying the offence to deliver up or refund to the financial institution, within a time to be fixed by the Banking Court, the property or the value of the property or security.

Explanation - Dishonesty may be presumed where a customer has not deposited the sale proceeds of the property with the financial institution in violation of the terms of the agreement between the financial institution and the customer.

(2) Whoever knowingly makes a statement which is false in material respects in an application for finance and obtains a finance on the basis thereof, or applies the amount of the finance towards a purpose other than that for which the finance was obtained by him, or furnishes a false statement of stocks in violation of the terms of the agreement with the financial institution or falsely denies his signatures on any banking document before the Banking Court, shall be guilty of an offence punishable with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

(3) Whoever resists or obstructs, either by himself or on behalf of the judgment debtor, through the use of force, the execution of a decree, shall be punishable with imprisonment, which may extend to one year, or with fine, or with both.

(4) Whoever dishonestly issues a cheque towards re-payment of a finance or fulfillment of an obligation which is dishonoured on presentation, shall be punishable with imprisonment which may extend to one year, or with fine or with both, unless he can establish, for which the burden of proof shall rest on him, that he had made arrangements with his bank to ensure that the cheque would be honoured and that the bank was at fault in not honouring the cheque.

> *(5) Where the person guilty of an offence under this Ordinance is a company or other body corporate, the chief executive by whatever name called, and any director or officer involved shall be deemed to be guilty of the offence and shall be liable to be prosecuted against and punished accordingly.*
>
> *(6) All offences under this Ordinance shall be bailable, non-cognizable and compoundable.*

8. In these petitions, we are primarily concerned with the provisions of subsection (1) of section 20 and the petitions substantially and primarily relate to a challenge to the registration of FIRs under the PPC or initiation of complaints in respect of scheduled offences before Special Judge (Offences in Banks) on the ground that the exclusive jurisdiction lies with the Banking Court and the offences are those, which by their tenor and texture, are covered by ones mentioned in subsection (1) of section 20 and the jurisdiction of ordinary courts or that of any other court except the Banking Court is barred.

9. As adumbrated, the fundamental reliance of the petitioners in putting forth this submission is on the basis of subsection (4) of section 7 of the Ordinance, 1984 which has been referred to above. In this regard, it will be useful to notice subsection (5) of section 7 to complete the narrative in the

context of exclusion being relied upon by the petitioners. Subsection (5) is itself an exception carved out of the exclusivity which is contained in subsection (4). By subsection (5) the power of the financial institution and its right to seek any remedy before any Court that may be available to it under the law by which the financial institution has been established, has been retained. Subsection (5) further provides that nothing in subsection (4) was required the transfer to a Banking Court of a proceeding pending before any Court immediately before the coming into force of the Ordinance, 2001. Two aspects would starkly come out upon a reading of subsection (5). Firstly, a parallel remedy provided under the law by which a financial institution may have been established has been kept intact. Therefore, to that extent the jurisdiction of the Banking Court is not exclusive and runs parallel to the other remedy contemplated by subsection (5). Secondly, in case proceedings are already pending before any other Court upon the promulgation of the Ordinance, 2001, it will not require the transfer of those proceedings to the Banking Court. This is also an exception to the general rule that the change of forum is procedural in nature and would act retrospectively and in normal circumstances this will have entailed the transfer of all proceedings to the Banking Court. The issue which is sought to be flagged by the interpretation of subsection (5) is that the Ordinance, 2001 itself creates an exception to the exclusive jurisdiction of a Banking Court envisaged in subsection (4). This should put a dent in the arguments of the learned counsel for the petitioners that no other Court has the jurisdiction except the Banking Court.

10. We may now advert our attention to the ingredients that make up the offences in subsection (1) of section 20. We will also take the opportunity to undertake a comparison of subsection (1) of section 20 with section 406 and 409 of PPC in order to illustrate that the ingredients of these offences are materially different and there is an inherent flaw in the arguments of the learned counsel for the petitioners that no prosecution can be initiated under the general law.

11. In order to set into motion the proceedings under section 20 of the ordinance, 2001, a complaint by an authorized officer of the financial institution is a *sine qua non.* The offences under subsection (1) of section 20 relate to the breach of the terms of a letter of hypothecation, trust receipt or any other instrument or document executed by **him** (i.e. by the customer) and is for the repayment of finance or fulfillment of any other obligation. Therefore, the prosecution can only be through a complaint by the financial institution and no other person can initiate such a prosecution. The prosecution can only be against a customer of the bank who has executed a document mentioned in clause (a) of subsection (1) or has made a fraudulent misrepresentation in terms of clause (b) of subsection (1) or subsequent to the creation of a mortgaged in favour of financial institution dishonestly alienates or parts with the possession of the mortgaged property. All of these offences are directed against the customer of a bank and none else. Therefore, it follows by necessary intendment that prosecution against a person other than the

customer cannot be brought before the Banking Court in terms of subsection (1) of section 20.

12. Sections 408 and 409, PPC deal with criminal breach of trust by clerk or servant and by public servant or by banker, merchant or agent respectively. These provisions are reproduced as under:

> *"**408. Criminal breach of trust by clerk or servant:** Whoever, being a clerk or servant or employed as a clerk or servant, and being in any manner entrusted in such capacity with property, or with any dominion over property, commits criminal breach of trust in respect of that property, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.*
>
> ***409. Criminal breach of trust by public servant, or by banker, merchant or agent:** Whoever being in any manner entrusted with property, or with any dominion over property in his capacity of a public servant or in the way of his business as a banker, merchant, factor, broker, attorney or agent, commits criminal breach of trust in respect of that property, shall be punished with imprisonment for life or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine."*

13. It can be seen that the provisions of section 408 and 409, PPC are of a much wider import and encompass within themselves prosecution against certain individuals and persons other than the customers of the financial institutions who have

executed certain documents with the financial institutions. Thus, in case the prosecution is sought to be launched against a clerk or a servant of a customer or it is sought to be included in the prosecution any of the bankers, agents, attorneys or brokers who have committed a criminal breach of trust in respect of property, that may only be brought in terms of section 408 and 409, PPC and not under the Ordinance, 2001. Further, if prosecution is sought to be initiated by any other person other than a financial institution, it can only be done under the general law and not under the Ordinance, 2001. In most cases, the Muqaddam appointed by banker is also sought to be prosecuted and it is clear that no prosecution can be brought against the Muqaddam under the Ordinance, 2001 and proceedings will necessarily have to be initiated under the general law. This begs the question; if the criminal complaint or FIR includes the name of accused other than customers then can it be said that the prosecution can only lie under section 20 of the Ordinance, 2001 and under no other law? To lay down such a proposition will be a fallacy and irrational and would be tantamount to a complete ouster of the general jurisdiction to register cases conferred upon the officers under the Cr.P.C. and taking of cognizance of such offences by the courts under the general law or under the special law relating to banks which can take cognizance of scheduled offences.

14. We will now take note of an important provision which in itself permits prosecution under any other law to take place and lays down an exception in itself. This exception is couched in the words "without prejudice to any other action that may be taken against him under this Ordinance or any other law for the time being in force" occurring after clause (d) of subsection (1) of section 20. While interpreting these words, we are guided by the rule of interpretation that if the intention of the legislature is clear then it must be given effect to without demur. It is not for the courts to supply meaning to provisions which clearly bring forth the intention of the legislature and in this matter we do not intend to give a different meaning to these words other than what was intended and what they

convey. The intention of the legislature is clear. It does not place a bar on any other action which may be taken against the customer under any other law for the time being in force. This will include the law relating to criminal prosecution and enshrined in the Cr.P.C and the PPC. In fact, by these words the legislature intended that both the actions can run parallel to each other and do not overlap and nullify each other. The purpose of enacting these words is clear to our mind. The legislature had in contemplation the varying nature of the criminal offences contained in the Ordinance, 2001 and other laws and purposefully did not bar the prosecution to be initiated in the respective spheres of different laws. These words in themselves are an exception to subsection (4) of section 7 and must be read in conjunction with each other. If the intention of the legislature was to completely oust the jurisdiction of any other forum or court with regard to criminal offences then the legislature could have omitted these words. These words on the other hand lend actuality to the analysis that we have called upon to undertake in these petitions. It will be well-nigh impossible for any authority or court to hold at the start of prosecution whether the offence falls under one or the other law. This question can only be determined after a prosecution has been set into motion. Be that as it may, we have no doubt in our mind that these words convey and convey ineluctably that criminal prosecution under any other law for the time being in force is permitted by the very terms of subsection (1) of section 20 with regard to offences mentioned in subsection (1).

15. The primary reliance of the learned counsel for the petitioners is upon a Division Bench judgment of this Court reported as *Aamer Khurshid Mirza v. The State* (**2005 CLD 20**). The provisions which came for interpretation in Aamir Khurshid Mirza were the provisions of Banking Tribunal Ordinance, 1984 and the challenge was to the prosecution of criminal offences before the special courts set up under the Offences in Respect of Banks (Special Courts) Ordinance, 1984. It was held by the learned Bench that:

> *"The wisdom of providing machinery for the recovery of money under the Banking Tribunals*

Ordinance, 1984 becomes evident by a joint reading of the sections reproduced above. The legislature is cognizant of the fact that in some of the cases there would be customers who would try to defeat the Bank's efforts for recovery of its money. This is why this offence has been created and the same forum which is involved in adjudication of the matter of recovery has been vested with the powers to punish. The legislature is, presumed to be cognizant of the existing law, therefore, we cannot lightly and easily ignore the expression of legislative will as has been manifestly expressed in the above quoted provisions of the Banking Tribunal Ordinance. The presumption is that the legislature does not make any mistakes. The Banking Tribunal Ordinance is a special law relating to the recovery of money from delinquent/defaulting borrowers. We have no doubt in our mind that it is a complete Code unto itself and provides machinery for dealing with the matter of recovery of money and it relates to matters including offences created with regard to an effort at thwarting recovery. This compels us to conclude that the provisions of the Banking Tribunals Ordinance, 1984 will prevail over any other law and any criminal act falling within the definition of offence contained in section 7 of the Ordinance will fall within the exclusive domain of the Banking Tribunal and that too in the manner provided i.e. that the offence will be not cognizable and that the cognizance thereof will be taken by the Tribunal on a written complaint by the Bank. It will be bailable as also compoundable. Our attention has also been drawn to case of Nayyar Islam (PLD 2001 Lahore 533) wherein in a similar situation arising out of section 19 of the Banking Company (Recovery of Loans, Advances and Finances) Act, 1997 this Court came to the conclusion that the Act being a special law would prevail over the general law. We are in agreement with the conclusion arrived at in the said case and may add that the petitioner too is being sought to be prosecuted under the general law but only before the special Forum. We have already observed that Ordinance IX of 1984 only provides a different forum and does not *create a new offence as is the case under Banking Tribunals Ordinance, 1984."*

16. It was further held that:

"14. We now advert to the import of the words "without prejudice to any other action which may be taken against him under this Ordinance or any other law for the time being in force" which occur in section 7 of the Banking Tribunals Ordinance, 1984. In our view the Legislature cannot be presumed to have envisioned punishing an offender under this law and then to allow proceedings against him under the general law as well..."

17. The general proposition and the conclusion drawn by the learned Bench in Aamir Khurshid Mirza does not detract from the fact that the provisions of Banking Tribunal Ordinance, 1984 will prevail over any other law and any criminal act falling within the definition of offence contained in section 7 of the Ordinance. And that it will fall within the exclusive domain of the Banking Tribunal. We do not disagree with the conclusion drawn by the learned Bench. However, the learned Bench did not advert its attention to the issue whether if a criminal prosecution was initiated under the general law and an offence was made out under that law will that prosecution will be *ultra vires* or not? This question was neither discussed nor a

finding was rendered by the learned Bench in Aamir Khurshid Mirza. Moreover, the discussion with regard to the crucial words "without prejudice to any other action that may be taken against him under this Ordinance or any other law for the time being in force" is not supported by any reasoning and it is trite principle vouched by respectable authorities that for a precedent to have a binding nature, it must be supported by reasons. We do not consider, therefore, that the finding to that extent is binding on this Bench.

18. The learned counsel for the petitioners has also relied upon *Tariq Hameed and 2 others v. Additional Sessions Judge and 5 others* (**2015 MLD 1188**), which is a Single Bench judgment of this Court and arose out of proceedings taken by the ex-officio justice of peace under section 22-A, Cr.P.C. whereby registration of criminal offence was ordered. This act of the ex-officio justice of peace was quashed by the learned Single Bench of this Court in Tariq Hameed and 2 others. However, the learned Single Bench did not consider the various aspects of the provisions of the Ordinance, 2001 in

juxtaposition with the general law under which prosecution can be initiated. On the simple ground that special law will have an overriding effect over general law, the conclusion was drawn that no prosecution could be initiated under the general law. This was held without coming to the conclusion whether an offence under the general law was made out or not and whether it was distinguishable with regard to its ingredients to the offences mentioned in the Ordinance, 2001. Another judgment of this Court has also been relied upon viz. *Habib Bank Ltd. v. Capital City Police Officer and others* (**2015 CLD 1508**) and which proceeds on the same set of reasoning and deductions. In our opinion, these precedents do not take account of the entire context of the law in its true perspective. More importantly, these judgments do not take into account a judgment of the Supreme Court of Pakistan reported as *Industrial Bank of Pakistan and others v. Mian Asim Fareed and others* (**2006 SCMR 483**). Although the judgment of the Supreme Court was cited before the learned Single Bench but no reference was made to the said judgment at the time of the holding by the learned Single Bench.

19. We will now refer to the judgment of the Supreme Court of Pakistan reported as ***2006 SCMR 483***. The FIR was registered under sections 420, 406 and 379 PPC on the complaint of an officer of Industrial Bank of Pakistan. On a petition filed before this Court, a quashment order was passed on the grounds that section 7(4) of the Ordinance, 2001 prescribed that it was only a Banking Court which could take cognizance of the offence under the Ordinance and the recording of an FIR in the matter was unsustainable. It was held by the Supreme Court that:

> *"2. In the absence of any finding that the above mentioned offences mentioned in the F.I.R. were false and malicious and in the absence of a finding that if a particular forum or mode had been prescribed with respect to the taking of cognizance of an offence then the same also implied prohibition regarding the registration of an F.I.R., no such order could be passed nor the same could be approved. Needless to add that the registration of an F.I.R. and taking of cognizance of cases were two distinct and independent concepts under the criminal law; that if the intention of the law-maker was to put any clog on the registration of an F.I.R. then the Legislature would have said so specifically and that if the law put a condition only on the taking*

of cognizance then it can never be read to imply prohibition on registration of F.I.Rs.

3. Having heard the learned counsel for the parties at some length, we find that the impugned order had not been legally and validly passed. In the circumstances, this petition is converted into an appeal which is allowed as a result whereof the said order dated 23-12-2004 passed by the learned High Court in Writ Petition No.1181 of 2004 is set aside."

20. It can be seen that the judgment of the Supreme Court of Pakistan is short and pithy and brings forth the true state of law with regard to the initiation of prosecution in respect of criminal offences. Although, no reference in the judgment is found to the crucial words contained in subsection (1) of section 20 with regard to action under any other law for the time being in force, the essence of the judgment captures the intention conveyed by the legislature by these words. It was specifically laid down by the Supreme Court of Pakistan that the intention of the lawmaker was not to put a clog on the registration of an FIR and in case that was the intention then the legislature could have said so specifically and it cannot be read into the law by implication. This is the nub of the issue before us. The power to quash an FIR can only be exercised if it is held that the criminal offences in respect of

which the petitioners are sought to be prosecuted are not borne out or established from the contents of the FIR. It cannot be quashed on the ground that the offences mentioned in the FIR are also substantially and in large part covered by the offences under the Ordinance, 2001 and, therefore, the FIR be quashed. If the offences are made out under the PPC which is the general law, no action would arise for the quashment of the FIR and it must be seen on facts of each case that a case for quashment is made out or not. Unfortunately, the judgment of the Supreme Court of Pakistan was not alluded to by the Single Bench and, therefore, these precedents cannot be relied upon.

21. The petitioners seek the support of section 7 of the Ordinance, 2001 to urge the exclusionary rule. It is a common plea that the offences in respect of which provision is made in the Ordinance, 2001, are exclusively triable by the Banking Court. That may be so and could be the conclusion drawn upon a cumulative reading of the provisions of the Ordinance, 2001. Yet that does not have the effect of the ouster of the other laws or invoking the

offences under the general substantive law of PPC. The right question to ask is whether prosecution can be set in motion under the other laws if the ingredients of the offence under the other laws are made out. Surely the Ordinance, 2001 is a combination of substantive and procedural laws for it creates an offence and a forum for its trial, too. It will be irrational for the petitioners to urge that in all matters, and as a general rule across the board, no FIR or criminal prosecution can be triggered or launched on the ground that Banking Court has the exclusive jurisdiction in such matters. This plea ignores that proposition that the offences in the Ordinance, 2001 are not the same criminal offences as the offences under the PPC. They are different offences and are not enmeshed with each other. The term 'offence' is defined in the Code of Criminal Procedure, 1898, section 4 (o), to mean an act or omission made punishable by the law for the time being in force. The General Clauses Act, 1897, section 3(37), uses the same definition. In the context of the doctrine of *autre-fois* acquit or *autre-*

fois convict, Lord Derlin in the English Case of Connely (1964) 2 All ER 401, held that:

> "*It is necessary that the accused should have been put in peril of conviction for the same offence as that with which he is then charged. The word 'offence' embraces both the facts which constitute the crime and the legal characteristics which make it an offence. For the doctrine to apply it must be the same offence both in fact and in law.*"

22. Thus what is laid out by the provisions of the Ordinance, 2001 is that the Banking Court shall have or exercise jurisdiction with respect to any matter to which the jurisdiction of a Banking Court extends under the Ordinance, and no more. It does not say that prosecution under all other laws are barred. For, they may not be the same criminal offences at all. As an illustration, the complainant may allege the commission of an offence of a criminal breach of trust (as defined in section 405 of the PPC) and punishable under section 406, PPC. This is not the same offence as defined in section 20(a) of the Ordinance, 2001. Section 405, PPC reads as under:

> *"**405. Criminal breach of trust:** Whoever, being in any manner entrusted with property, or with any dominion over property, dishonestly misappropriates or converts to his own use that*

> *property, or dishonestly uses or disposes of that property, in violation of any direction of law prescribing the mode in which such trust is to be discharged, or of any legal contract, express or implied, which he has made touching the discharge of such trust, or willfully suffers any other person so to do, commits "criminal breach of trust."*

23. From a reading of section 405, PPC, it is clear that that offence is broader and has different ingredients from the one given under section 20(a) of the Ordinance, 2001. There is nothing in the Ordinance, 2001 to put a clog on the right of a person to seek his remedy under the general law and allege the commission of criminal offences under the PPC. That is certainly not the policy of the Ordinance, 2001 and the intention of the legislature. If the complaint discloses an offence under PPC, the police officer (or FIA as the case may be) is bound to proceed to register a case. Similarly, if a complaint makes out a scheduled offence, the Special Court (Offences in Banks) can take cognizance of it. What is to be seen by the Special Court is that the complaint constitutes the necessary ingredients of an offence which finds mention in the schedule and proceed in the matter. It may have some overlapping features with the offences in the

Ordinance, 2001 but that fact, on its own, will not bar the jurisdiction of the Special Court. Thus, if a criminal case has been registered under the general law, a petition for its quashment will be to this Court on the limited ground that the offence, if any, is only covered, by any one of the offences mentioned in Ordinance, 2001 and not by offences under any other law and is exclusively triable by the Banking Court. Thus, the financial institution is obliged to file a complaint and the registration of FIR is ultra vires. Likewise, in cases where challan has been submitted or the matter is before the Court, proper remedy may be availed for striking out the proceedings on the aforenoted ground.

24. We may briefly allude to Article 13 of the Constitution of Islamic Republic of Pakistan, 1973 although the stage for its consideration has not yet arrived nor is its applications an issue in these petition. Article 13 embodies protection against double punishment and self-incrimination. It contains the right against double jeopardy. The corresponding provision in the U.S Constitution, 5th amendment, known as double jeopardy clause, reads:

> *"Nor shall any person be subject for the same offence to be put in jeopardy of life and limb."*

25. The right against double jeopardy is provided in section 403, Cr.P.C. It is sufficient to refer here to subsection (I) of that section:

> *"403. **Persons once convicted or acquitted not to be tried for the same offence**. (I) A person who has once been tried by a Court of competent jurisdiction for an offence and convicted or acquitted of such offence shall, while such conviction or acquittal remains in force, not to be liable to be tried again for the same offence, nor on the same facts for any other offence for which a different charge from the one made against him might have been made under section 36, or for which he might have been convicted under section 237."*

26. As was held in Benton (395 US 784 (1969), the clause provides three related protections: "It protects against a second prosecution for the same offence after acquittal. It protects against a second prosecution for the same offence after conviction. And it protects against multiple punishments for the same offence after conviction." And successive prosecutions are barred by the fifth amendment, so said Justice O'Conner in Heath v Alabana (474 US 82, 88 L Ed 2d 387 (1985), "only if the two offences for which the defendant is prosecuted are the same for double jeopardy purposes."

27. For the present purposes, a reference to Article 13 of the Constitution has been made merely to hammer in that the rule against double jeopardy bars a successive prosecution if the two offences are the same. It does not bar the setting into motion a criminal prosecution under one or the other laws if the offence under that law is made out. It is not the case of the petitioners that the offences, either in the criminal complaint or the FIRs are not made out. It is that these ought to be tried by the Banking Courts since the offences comprise the overwhelming features of an offence under section 20 of the Ordinance, 2001. This view, in our opinion, does not chime with the intent underlying the Ordinance, 2001 and the general rule regarding trial and cognizance of offences. At best, the petitioners may invoke Article 13 of the Constitution to their aid at some stage but, as explicated, that is not a question before us in these petitions.

28. We will here take the opportunity to notice some of the legal propositions which will have an impact on the decision of these petitions. Firstly, *Muhammad Bashir v. Station House Officer, Okara*

Cantt and others (**PLD 2007 Supreme Court 539**) is a precedent which sets down the general principle that the registration of FIR has to be undertaken by the Office Incharge of a Police Station where he receives some information about the commission of a cognizable offence. The matter has been stated thus by the Supreme Court of Pakistan:

> *"12. The scheme of law which becomes apparent from a bare perusal of these provisions is that whenever an Officer Incharge of a Police Station receives some information about the commission of an offence, he is expected first to find out whether the offence disclosed fell into the category of cognizable offences or was one which was non-cognizable. And once he was through with this exercise then the word "SHALL' appearing in the said provisions of section 154, Cr.P.C. would take over which obliged, the S.H.O. thereafter to reduce the said information to writing in the First Information Report Register as, what is called by Chapter XXIV of the Police Rules of 1934, a F.I.R. if the offence disclosed was cognizable or else to merely record the same in the Station Diary as mentioned by section 155(1) of the Cr.P.C. and rule 24.3 of the said Rules and refer the information to the competent Magistrate if the offence be non-cognizable. As has been mentioned above sections 154 and 155 of the Cr.P.C. are the only two provisions in the said Code which talk about the manner in which an information received by a S.H.O relating to the commission of an offence was to be treated.*

> *13. It may be reiterated and even emphasized that there was no provision in any law, including the said section 154 or 155 of the Cr.P.C. which authorized an Officer Incharge of a Police Station to hold any enquiry to assess the correctness or the falsity of the information received by him before complying with the command of the said provisions which obliged him to reduce the same into writing irrespective of the fact whether such an information was true or otherwise.*
>
> *14. The wisdom was not far to find. If the S.H.O. was given the authority to determine the truthfulness or the falsehood of the allegations leveled against some one and thereafter to decide to record or not to record such allegations as F.I.R., then such a police officer would have got blessed with the power to decide about the guilt or innocence of an accused person. This was, however, far from the envisaged by the law-makers regarding the identification and the consequent acquittal or conviction of accused persons as the said task stood assigned only to the courts of law and had never been conceded to police officers."*

29. This brings forth ineluctably the settled principle of law that if a complaint is received by the Officer Incharge of a Police Station, he is obligated to register the FIR upon such complaint and is not required to determine the truthfulness or the falsehood of the allegations made against the persons against whom the complaint has been made. This view lends support to the conclusion drawn by us to the effect that if a complaint is made to the Officer

Incharge of a Police Station in which a cognizable offence prescribed under the PPC is made out, that officer has a duty to register the criminal case. We have alluded to in the previous paragraphs to the concept of double jeopardy as spelt out in Article 13 of the Constitution as also Section 26 of the General Clauses Act, 1897 and Section 403, Cr.P.C. While this question is not before this Court and does not arise at this stage, we may in passing refer the judgment of this Court *Niaz Ali v. The State* (**PLD 1961 (WP) Lahore 269**) to bring forth the concept underlying these provisions. This judgment was rendered in the context of section 26 of the General Clauses Act, 1897 and provides that:

> *"Section 26 of the General Clauses Act provides a bar to double punishment for the same offence, although a person is liable to be prosecuted and punished for an act or omission constituting an offence and falling under two or more enactments. In other words, there is no bar to a trial or conviction for the same act which is an offence under different enactments, but there is a bar to a punishment being awarded twice for the same offence. In such a case it would be quite in order to record the conviction separately and award concurrent sentences if they are of imprisonment, but in no case can an accused person be made to suffer any extra punishment by way of duplication for the same offence. In the present case, the*

> *punishment is illegal inasmuch as it imposes a fine of Rs.50 under each of the two enactments making a total of Rs.100. The extra fine of Rs.50 for the offence under one or other of the counts is therefore not legal involving, as it does, a duplication of punishment for the same offence."*

30. It is clear from a reading of the judgment, reproduced above, that a person is liable to be prosecuted and punished for an act or omission constituting an offence and falling under two or more enactments. It will be for the courts to see at a later stage whether a person is liable to be tried again for the same offence if a conviction or acquittal has taken place and remains in force. This principle was reiterated in *Ch. Tanvee Khan v. Chairman, National Accountability Bureau and others* (**PLD 2002 Supreme Court 572**).

31. A recent judgment of the Supreme Court of Pakistan reported as *Muhammad Nadeem Anwar v. Securities and Exchange Commission of Pakistan through Director NBFCs Deptt., Islamabad* (**2014 SCMR 1376**) dilates upon the true impact and connotation of section 403, Cr.P.C. as also Article 13(a) of the Constitution and section 26 of the General Clauses Act, 1897 which all deal with the

doctrine of double jeopardy to the effect that no person shall be vexed twice and prosecuted or punished for the same offence. The relevant facts in *Muhammad Nadeem Anwar* were that the appellant before the Supreme Court of Pakistan was sought to be tried under section 282-K read with section 230(7) and 234(6) of the Companies Ordinance, 1984 and section 409/109 of the PPC by the Peshawar High Court. An application was filed under section 403 Cr.P.C. read with Article 13 of the Constitution and section 26 of the General Clauses Act for the deletion of the name of the appellant from the array of accused mentioned in the criminal complaint before the Company Bench of the Peshawar High Court on the ground that the appellant stood convicted by the Accountability Court, Rawalpindi on same charge and having identical facts. That application was dismissed by the Peshawar High Court. An Intra Court Appeal too was dismissed by a Division Bench of the Peshawar High Court and the appellant appealed to the Supreme Court of Pakistan. The following extracts from the judgment of the Supreme Court will be relevant for our purposes:

> *"Learned counsel for the respondent, while vehemently contesting this petition, contends that prohibition to try a person for the second time for the same offence under the principle of double jeopardy, as contemplated by section 403, Cr.P.C., 1898, section 26 of the General Clauses Act, 1897 and Article 13 of the Constitution of Islamic Republic of Pakistan is applicable only in case where action of the person falls under the same enactment but if his such action falls under two distinct and separate enactments, then bar to try for the second time for another offence as contemplated by the aforesaid provisions of law shall not be applicable…"*
>
> *"Bare reading of afore-quoted provision of law is clearly suggestive of the fact that both are under different enactments of law having different procedure and forum for initiating proceedings thereunder although both the sets of offences have been committed by the accused in one go that is to say that the accused-petitioner acted in such a manner which constituted offences punishable under two separate and distinct laws i.e. one under the NAB, Ordinance and the other under the Companies Ordinance. Both are different and distinct pieces of legislation, therefore, acts and omissions of the petitioner committed by him cannot be said to be same offences…"*
>
> *"…Since the acts committed by the petitioner do not fall at all within the definition of the same offence, therefore, the principle of double jeopardy will not come into force. There Black's Law Dictionary meaning of the words "same offence" clearly shows that a similar offence, one of the same character or nature."*

7. Now in the light of the charges under which the petitioner was convicted and sentenced under the NAB Ordinance and the allegations in the subsequent proceedings under the companies jurisdiction are to be gone into in order to see that as to whether both the charges and allegations are one and the same or they constitute distinct offences. If the allegations contained in the complaint under the Companies jurisdiction and the charges under the NAB Ordinance are kept in juxtaposition it will be clearly apparent therefrom that the offences with which the petitioner is being charged under the Companies Jurisdiction of the Peshawar High Court relate to violation and non-compliance of requirements made in sections 230(7), 234(6) and section 282-K of the Companies Ordinance, 1984 in respect of books of accounts, keeping true and fair contents of balance sheet and making false statement, thus there is no similarity in between the aforesaid provisions of the Companies Ordinance and the NAB Ordinance despite the fact that the two prosecutions arose out of the same incident or some of the facts in the two prosecutions are common, the same will make no difference, thus, we feel no hesitation in coming to the conclusion that the offences under the Companies Ordinance are quite different, from the offences under the NAB Ordinance, 1999."

"It is thus clear that the same facts may give rise to different prosecutions and punishment and in such an event the protection afforded by Article 20(2) is not available. It is settled law that a person can be prosecuted and punished more than once even on substantially same facts provided the ingredients of both the offences are totally different and they did not form the same offence".

10. The facts of the instant case, viewed from any angle are suggestive of the fact that

> *the petitioner committed offences under two different enactments though by commission of act and omission in one go and do not at all fall within the ambit of same offence. In such circumstances, provisions of Article 13(a) of the Constitution of Islamic Republic of Pakistan, 1973, section 403 of the Code of Criminal Procedure, 1898 and section 26 of the General Clauses Act, 1897 are not relevant in the instant case because the petitioner committed offences which are neither similar to each other nor under the same enactments, therefore, the learned High Court has rightly held so while dismissing the constitutional petition and intra court appeal filed by the petitioner before Peshawar High Court, Peshawar. The learned High Court has, thus, committed no illegality or material irregularity while passing the impugned judgments, as such, the same warrant no interference by this Court in its constitutional jurisdiction. The cases relied upon by the learned counsel for the petitioner are either from the Federal Shariat Court or High Courts which are not binding on this Court and the facts in the case reported in PLD 2002 273 are different from the facts of the case in hand, as such, are not worthy of the reliance."*

32. A reading of the portions of the judgment, reproduced above for the present purposes would clearly bring forth that the Supreme Court was of the view that the offence under different and distinct pieces of legislation and covered therein could be tried separately and cannot be said to be the same offences. If a person acts in a manner which constitutes offences punishable under two distinct

laws, there is no bar on the trial of the accused person under those laws. It was then concluded that since the appellant had committed offences which were neither similar to each other under the same enactment, Peshawar High Court had rightly held that there was no bar on the trial of those offences by the Peshawar High Court under its companies jurisdiction. While holding so, the Supreme Court relied upon an Indian Supreme Court judgment reported as Monica Bedi v. State of Andhra Pradesh (2011) I SC Cases 284) and the following observations in particular *"It is thus clear that the same facts may give rise to different prosecutions and punishment and in such an event the protection afforded by Article 20(2) is not available. It is settled law that a person can be prosecuted and punished more than once even on substantially same facts provided the ingredients of both the offences are totally different and they did not form the same offence".*

33. Reference may also be made to a judgment of the Single Bench of this Court reported as *Shaukat Ali and others v. The State and others* (2012 CLD

1), which was the case for quashment of an FIR registered under section 406 PPC. The precise plea was that in terms of section 7(4) of the Financial Institutions (Recovery of Finances) Ordinance, 2001, the jurisdiction of the police officers to register an FIR in terms of offences covered by the Financial Institutions (Recovery of Finances) Ordinance, 2001 was barred. The learned Single Bench relied upon Industrial Development Bank of Pakistan and others and refused to quash the FIR on the ground that each criminal case has its own facts and is to be decided keeping in view the attending circumstances.

34. The learned counsel for the respondents also produced a judgment of the High Court of Sindh at Karachi in constitutional petition W.P No.544 of 2015. In that case as well, the quashment of the FIR had been sought on the ground that the offences were cognizable by the Banking Court and no FIR could be registered. It was the case of the petitioners that the offences fell within section 20 of the Financial Institutions (Recovery of Finances) Ordinance, 2001 from the contents of the FIR and,

therefore, it was imperative that the proceedings before the Banking Court be commenced and the act of the registration of FIR was *ultra vies*. It was held by the High Court of Sindh:

> *"…The essence of petitioner's case is that in presence of a particular mechanism provided under section 20 of Ordinance, 2001 specifically dealing with the breach of terms of a letter of hypothecation, trust receipt, or any other instrument or document executed by a person/company whereby possessions of assets or properties offered as security for the repayment of finance or fulfillment of any obligation are not with the financial institution but are retained by him/company availing finance facility, the FIR cannot be lodged under any other penal laws and the proceedings emanating from such FIR before the Special Court for Offences in Banks would be coram non judice and incompetent; the Special Court cannot take cognizance of such offence and hold trial against the petitioners…"*

> *"…A brief summary of sections 20 ibid would not be out of place here. Subsection 1 thereof starts within the words "Provisions relating to certain offences" and has four clauses i.e a,b,c,d which mainly deal with the one who commits offences concerning breach in terms of letter of hypothecation or document etc, executed by him; makes fraudulent misrepresentation or commits a breach of an obligation or representation made to avail finance facility; dishonestly alienates or parts with the mortgaged property without consent of financial institution after creation of mortgage in its favour and subsequent to the passing of a decree under section 10 or 11, sells, transfers or otherwise alienates, or parts with possession of his assets*

*or properties acquired after the grant of finance by the financial institution, including assets or properties acquired banami in the name of an ostensible owner. It further provides that he shall, "**without prejudice to any other action which may be taken against him under this Ordinance or any other law for the time being in force**" be punished with imprisonment for a term which may extent to three years and fine which could be up to the value of the property or security as decreed or the market value whichever is higher and shall be ordered by the Banking Court trying the offence to deliver up or refund to the financial institution the property or the value of property or security, with in fixed time…"*

"…According to subsection 6 all offences under the Ordinance, 2001 are bailable, non-cognizable and compoundable. Because the offences are non-cognizable, the Banking Court in terms of section 7 of the Ordinance, 2001 can take cognizance of an offence only upon a complaint in writing made by a person authorized in this behalf by the financial institution in respect of which the offence is said to have been committed. Such scheme of law may be providing a procedure to the financial institution to seek remedy against the shenanigans/acts enumerated above in subsections 1 to 5 to section 20 ibid. However, the same cannot be read to infringe the right of a financial institution to resort to other remedies available under any other law. The said procedure in no words can be termed an all-encompassing piece of legislation answering to all situations coming about in the wake of a breach in terms of an agreement regarding hypothecation of stock by the person whereby the mortgaged goods are being surreptitiously alienated or sold by him without consent of the financial institution with an ostensible object to avoid fraudulently repayment of finance and to defraud the financial institution. If such acts constitute a cognizable offence punishable

under the penal provisions of other laws, besides being actionable under the provisions of the Ordinance, 2001 the recourse to the FIR cannot be declared illegal. The words "without prejudice to any other action which may be taken against him under this Ordinance or any other law for the time being in force" occurring in section 20 of the Ordinance, 2001 amply establish that registration of an FIR in case of commissioning of a cognizable offence by a person is not barred altogether. The mode of taking cognizance by the Banking Court provided under section 7 of the Ordinance, 2001 is a separate and independent concept under the criminal law which cannot overtake or equate the right of a person to register an FIR in the face of a cognizable offence. The import and meaning which is not apparent and understandable from a bare reading of a provision of certain law cannot be farfetched to nullify obvious object or scheme of sister laws. We are afraid that learned counsel has not been able to bring up any interpretation of subject law putting prohibition over lodging the FIR or permitting its quashment without any evidence of its being malicious or false.

"…On similar grounds so urged by the petitioner here, the Lahore High Court in the case of Mian Asim Fareed and others versus Industrial Development Bank of Pakistan reported in 2005 CLD 436 quashed the FIR lodged almost under same offences by holding it to have been registered in violation of section 7(4) of Ordinance, 2001. The matter went in appeal before the Honourable Supreme Court and is reported in 2006 SCMR 483. In para No.2 of the judgment the Honourable Apex Court stated as under:

> *"2. In the absence of any finding that the above mentioned offences mentioned in the F.I.R were false and malicious and in the absence of a*

> *finding that if a particular forum or mode had been prescribed with respect to the taking of cognizance of an offence then the same also implied prohibition regarding the registration of an F.I.R., no such order could be passed nor the same could be approved. Needless to add that the registration of an F.I.R. and taking of cognizance of cases were two distinct and independent concepts under the criminal law; that if the intention of the law-maker was to put any clog on the registration of an F.I.R. then the Legislature would have said so specifically and that if the law put a condition only on the taking of cognizance then it can never be read to imply prohibition on registration of F.I.Rs."*

> *While discussing as above, the Honourable Supreme Court was pleased to set aside the order of Lahore High Court whereby the FIR was quashed. In the case in hand it is not alleged that the impugned FIR has been maliciously lodged against the petitioners or it contains allegations which ex facie are not tenable in the eyes of law or registration of impugned FIR is nothing but abuse of process of law, which shall be checked in its inception. In absence of any cogent and legal ground; merely on the pleas taken by the petitioners the impugned FIR cannot be quashed…"*

35. It can be seen from the above that the High Court of Sindh also concluded that if the complaint constitutes a cognizable offence punishable under the penal provisions of Financial Institutions (Recovery of Finances) Ordinance, 2001, the mere

fact will not be informed for quashment of the FIR. While so holding, the words "without prejudice to any other action which may be taken against him under this Ordinance or any other law for the time being in force" were relied upon.

36. As an illustration of the legislature's intent to prescribe a mode for dealing with offences under other laws in a certain manner, section 203-A of the Cr.P.C. may be referred to. It reads as under:

> *"203. Dismissal of complaint. [The Court] before whom a complaint is made or to whom it has been transferred or [sent] may dismiss the complaint, if, after considering the statement on oath (if any) of the complainant and the result of the investigation or inquiry if any under section 202 there is in his judgment no sufficient ground for proceeding. In such case he shall briefly record his reasons for so doing.*
>
> *203-A. Complaint in case of Zina.—(I) No Court shall take cognizance of an offence under section 5 of the Offence of Zina (Enforcement of Hudood) Ordinance, 1979 (VII of 1979), except on a complaint lodged in a Court of competent jurisdiction.*
>
> *(2) The Presiding Officer of a Court taking cognizance of an offence on a complaint shall at once examine, on oath, the complainant and at least four Muslim, adult eyewitnesses, about whom the Court is satisfied having regard to the requirement of tazkiya-al-Shahood, that they are truthful persons and abstain from major sins (Kabair)*

of the act of penetration necessary to the offence.

Provided that, if the accused is a non-Muslim, the eye-witnesses may be non_Muslims.

Explanation.—In this section "tazkiya-al-shahood" means the mode of inquiry adopted by a Court to satisfy itself as to the credibility of a witness.

(3) The substance of the examination of the complainant and the eye-witnesses shall be reduced to writing and shall be signed by the complainant and the eye-witnesses and also by the Presiding Officer of the Court.

(4) If in the opinion of the Presiding Officer of a Court, there is sufficient ground for proceedings the Court shall issue a summons for the personal attendance of the accused.

(5) The Presiding Officer of a Court before whom a complaint is made or to whom it has been transferred may dismiss the complaint, if, after considering the statements on oath of the complainant and the four or more eye-witnesses there is, in his judgment, no sufficient ground for proceeding and in such case he shall record his reasons for so doing."

37. It can be seen that where the legislature intended to oust the powers of the Office Incharge of a Police Station to register a case with regard to the offences under an enactment, it has been provided by a specific provision in the Cr.P.C. This was clearly intended to obviate the possibility of the abuse of the process of the law and to prescribe a

specific procedure for the setting into motion of prosecution under an enactment. Had the intention of the legislature been to apply the same set of reasoning and procedure in the case of offences under the Ordinance, 2001, a provision to this effect could have been enacted and promulgated in the same terms in the Cr.P.C. The learned counsel for the petitioners do not rely upon any such provision to exist in the Cr.P.C.

38. In view of the conclusion reached by us in the preceding paragraphs, these petitions are **dismissed**. In case the petitioners deem fit to avail their remedy as elaborated upon in paragraph 23 of this judgment, the matter, in each individual case shall be determined on its peculiar merits.

(ABID AZIZ SHEIKH)
JUDGE

(SHAHID KARIM)
JUDGE

Approved for reporting.

JUDGE **JUDGE**

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Rafaqat Ali`

Appendix-1

Sr. No.	W.P No.	Title
1.	3338 of 2016	Syed Amir Hussain v. G.O.P etc
2.	31284 of 2015	Syed Mushahid Shah v. F.I.A etc.
3.	35792 of 2015	Mian Naseer Ahmad v. F.I.A etc
4.	36199 of 2015	Tahir Naseem v. F.I.A. etc
5.	36331 of 2015	Jahangir Ahmad etc. v. G.O.P etc
6.	36555 of 2015	Umar Hayat v. G.O.P etc
7.	36556 of 2015	Muhammad Shafiq v. G.O.P etc
8.	1824 of 2016	Farooq Ahmad v. G.O.P etc
9.	2556 of 2011	Muhammad Ali Qureshi v. F.O.P etc
10.	2554 of 2011	-do-
11.	2555 of 2011	-do-
12.	17811 of 2011	Syed Dawood Hussain v. F.O.P etc
13.	8073 of 2016	Faisal Farooq v. G.O.P etc.
14.	6513 of 2011	Musharaf Shehzad v. SHO etc
15.	7439 of 2011	Babar Hussain v. Askari Bank etc.
16.	6720 of 2016	Naseer Ahmad v. SHO etc
17.	23901 of 2009	Sheikh Niaz Anjum v. SHO etc
18.	2207 of 2010	Asim Nawaz v. F.O.P etc
19.	8209 of 2007	Muhammad Kaleem Akhtar v. D.I.G etc
20.	343 of 2013	Naeem Ahmad v. Askari Bank etc
21.	344 of 2013	-do-
22.	342 of 2013	-do-
23.	18210 of 2010	Amir Shehzad v. Askari Bank etc
24.	3932 of 2011	Pervaiz Sadiq v. Bank of Punjab etc
25.	3927 of 2011	Mairaj Din v. Askari Bank etc
26.	18213 of 2010	Hamad Hsassan v. Askari Bank etc
27.	19425 of 2011	Karam Dad Bhatti v. State etc
28.	14779 of 2012	Shehzad Mehmood v. SHO etc.
29.	10457 of 2010	Muhammad Yousaf v. S.C.B etc

(ABID AZIZ SHEIKH)
JUDGE

(SHAHID KARIM)
JUDGE

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Rafaqat Ali`